

REGULAR MEETING MINUTES
TOWNSHIP COUNCIL – TOWNSHIP OF OCEAN

FEBRUARY 27, 2020

OAKHURST, NEW JERSEY

The Regular Meeting of the Township Council was held in the Public Meeting Room, First Floor, 399 Monmouth Road, Oakhurst, NJ 07755 at 7:00 p.m.

Present: Mayor Siciliano
Deputy Mayor Napolitani
Councilmember(s) Acerra, Donlon and Fisher

Others: Martin Arbus, Esq., Township Attorney
Michael Muscillo, Township Manager
Vincent Buttiglieri, Township Clerk

Statement of Compliance with the Open Public Meetings Act:

Mayor Siciliano announced that the notice requirements of the Open Public Meetings Act for this meeting have been satisfied; a copy of the Meeting Notice was sent to the Asbury Park Press and The Coaster, posted in Town Hall and filed in the Office of the Township Clerk on December 30, 2019.

NOTICE:

All cell telephones must be turned off. If you need to make a call, please make your call outside the meeting room.

PROCLAMATION:

**League of Women Voters
100th Anniversary**

Mayor Siciliano invited Peggy Dellinger and Dallas Grove up to discuss the purpose of the League of Women Voters and what activities they have to promote voting for both men and women.

Ms. Dellinger mentioned that New Jersey was the first state in the Union to allow women and African Americans to vote.

Eric Houghtaling, Assemblyman (District 11) presented the League of Women Voters with a Joint Proclamation from the Senate and Assembly of the State of New Jersey commemorating this momentous occasion.

Ms. Dellinger and Ms. Grove thanked the Mayor and Council for the recognition.

COUNCIL REPORTS:

Councilmember Fisher announced the next Planning Board meeting will be held on March 2, 2020 at 7:00 p.m.

Councilmember Fisher also reported that he attended the Cub Scout Troop 143 Blue and Gold Dinner on February 23, 2020.

Councilmember Acerra announced that the Greater Ocean Township Chamber of Commerce was holding a Wine and Cheese event on February 27, 2020 at the English Manor

Mayor Siciliano announced the St. Patrick's Day Dinner will be held on March 13, 2020 at the Renaissance at the Italian American Club. All are invited to attend.

The following did not offer any report at this time:

Councilmember Napolitani and Donlon
Martin Arbus, Esq., Township Attorney
Michael Muscillo, Township Manager

MAYOR'S STATEMENT: Public Questions on Resolutions

The purpose of this public portion is solely to ask questions to understand Resolutions that appear on this agenda and is not an occasion for a public hearing on an Ordinance. All questions not related to an item on this Agenda should be asked during the Public Comments portion at the conclusion of the meeting.

Public Comments

There were no Public Comments at this time.

CONSENT AGENDA:

MINUTES:

January 30, 2020 - Workshop and Public Meeting(s)
 February 6, 2020 – Workshop and Public Meeting(s)
 February 8, 2020 – Budget Workshop Meeting

RESOLUTIONS:

20-044 Authorize a Stormwater Management and Escrow Fund Agreement for the following:

a. Block 34, Lots 3.03 & 5 - 1602 Highway 35 South - Cardinale & Ocean Crossing Associates, LLC

WHEREAS, the Township of Ocean Planning Board as part of a site plan approval for lands designated as **Block 34, Lots 3.03 & 5** located at **1602 Highway 35 South**, required the applicant to enter into a Stormwater Management Easement and Escrow Fund Agreement; and

WHEREAS, the Township professionals in conjunction with the property owners' representatives prepared a Stormwater Management Easement and Escrow Fund Agreement, a copy of which is available in the Township Clerk's office; and

WHEREAS, the Stormwater Management Easement and Escrow Fund Agreement is subject to review and approval by the Township Attorney.

NOW, THEREFORE, BE IT RESOLVED by the Mayor and Council of the Township of Ocean, County of Monmouth, State of New Jersey, that the Mayor and Township Clerk are hereby authorized to sign this Agreement on behalf of the Township of Ocean so that said Agreement can be recorded in the County of Monmouth.

BE IT FURTHER RESOLVED that a condition of the approval of this Agreement shall be that the metes and bounds description for the entire property be included as an attachment to the Agreement with both the Agreement and the attached being recorded in the County of Monmouth.

BE IT FURTHER RESOLVED that a certified copy of this Resolution be forwarded to the following:

1. Cardinale & Ocean Crossings Associates, LLC
2. Martin J. Arbus, Esq., Township Attorney
3. Ron Kirk, Director of Community Development

20-045 Authorize the Reduction of Performance Guarantee(s) for the following:**a. Block 1.02, Lot 51.11 - 16 Cindy Lane - Cindy Lane Family Ventures, LLC**

WHEREAS, on March 27, 2017 the Township of Ocean Planning Board granted Final Site Plan Approval to construct forty-eight (48) affordable apartments in two (2) three-story buildings for property located on Block 1.02, Lot 51.11 also known as 16 Cindy Lane; and

WHEREAS, the Township Council did authorize and enter into a developer's agreement dated September 14, 2017 with Cindy Lane Family Ventures, LLC to construct forty-eight (48) affordable apartments in two (2) three-story buildings located on Block 1.02, Lot 51.11 also known as 16 Cindy Lane; and

WHEREAS, Cindy Lane Family Ventures, LLC posted performance guarantees by way of Performance Surety Bond No. 800001952 issued by Atlantic Specialty Insurance Company, Plymouth, MN in the total amount of \$686,340.00 together with cash in the amount of \$76,260.00; and

WHEREAS, the Township Clerk is in receipt of a letter from Peter S. Falvo, Jr., representing Cindy Lane Family Ventures, LLC dated December 13, 2019, requesting the release of the performance guarantees; and

WHEREAS, the Township Clerk is in receipt of a letter from the Township Engineer's representative, Louis J. Lobosco, P.E., P.P., of Leon S. Avakian, Inc. dated February 6, 2020 recommending the granting of a performance guarantee reduction; and

WHEREAS, the Township Council is willing to reduce the amount of the performance bond and cash guarantee to 30% of the updated performance guarantee estimate amount.

NOW, THEREFORE, BE IT RESOLVED by the Township Council of the Township of Ocean, in the County of Monmouth, that it does hereby authorize and approve a reduction of the performance guarantees to the sum of \$228,780.00 in the form of a performance bond in the amount of \$205,902.00 and cash in the amount of \$22,878.00, representing 30% of the original performance guarantee pursuant to N.J.S.A. 40:55D-52.e(1) expressly subject to the following conditions:

1. All required certificates of insurance be properly filed with the Office of the Township Clerk
2. Payment of any outstanding engineering inspection fees

BE IT FURTHER RESOLVED that a certified copy of this Resolution shall be forwarded to the following:

1. Township Engineer
2. Director of Finance
3. Director of Community Development
4. Construction Official
5. Peter S. Falvo, Jr., Esq.
6. Cindy Lane Family Ventures, LLC

20-046 Authorize the Release of Performance Guarantee(s) for the following:**a. Block 38, Lot 19 - 405 Bowne Road - Antimo and Rosa Russo**

WHEREAS, the Township of Ocean, a municipal corporation, entered into a Developer's Agreement dated October 13, 2016 with Antimo and Rosa Russo to subdivide existing property into three (3) fully conforming building lots with variances, which property is known as Block 38, Lot 19 located at 405 Bowne Road; and

WHEREAS, Antimo and Rosa Russo posted performance guarantees in the total amount of \$69,600.00, ten percent (10%) (\$6,960.00) of which was cash and deposited with the Township in accordance with the ordinances of the Township and the remaining ninety percent (90%) (\$62,640.00) was in the form of a Site Improvement Performance Bond and cash in the amount of

MEETING MINUTES**February 27, 2020**

\$4,400.00 for inspection costs of the Township Engineer for the property known as Block 38, Lot 19 located at 405 Bowne Road; and

WHEREAS, the Agreement is further subject to the Township's written consent to any assignment of interest in the property by Antimo and Rosa Russo, evidencing such Assignee's willingness to be bound by the terms and conditions of the original Agreement; and

WHEREAS, Antimo and Rosa Russo its successors or assigns, has entered into a contract to transfer, sell or otherwise assign its interest in the property known as Block 38, Lot 19 located at 405 Bowne Road to James Renard; and

WHEREAS, the Township Council by way of resolution dated July 11, 2019 authorized the assignment of Developer's Agreement from Antimo and Rosa Russo to James Renard; and

WHEREAS, James Renard has posted the proper performance guarantees, engineering inspection fees and certificate of insurance.

NOW, THEREFORE, BE IT RESOLVED by the Mayor and the Township Council of the Township of Ocean, Monmouth County, State of New Jersey, that it does hereby authorize the full release of the performance guarantees heretofore posted by Antimo and Rosa Russo for property known as Block 38, Lot 19 located at 405 Bowne Road; and

BE IT FUTHER RESOLVED that a certified copy of this resolution be forwarded to the following:

1. Township Engineer
2. Director of Finance
3. Director of Community Development
4. Construction Official
5. Western Surety Company
6. Antimo and Rosa Russo

20-047 Approve the release of Closed Session Minutes from January 30, 2020, February 6, 2020 and February 8, 2020

WHEREAS, Section 8 of the Open Public Meetings Act, Ch. 231, P.L. 1975 permits the exclusion of the public from a meeting in certain circumstance; and

WHEREAS, the public shall be excluded from discussions of and actions upon specified subject matters including:

1. Personnel
2. Pending litigation matters involving the Township, its employees and/or agents
3. Pending or future land acquisitions
4. Pending or future contract negotiations

WHEREAS, the Township of Ocean adopted procedures to make closed session minutes available for public inspection; and

WHEREAS, the Municipal Clerk, on a periodic basis shall review the minutes of the closed sessions of the Township of Ocean and make a recommendation to the Township Council which minutes should be made available for public inspection. The minutes which are made public shall not thereafter be treated as confidential but may be viewed by and copies issued to any person so requesting them; and

WHEREAS, the release of the below noted closed session minutes are subject to certain item(s) being redacted prior to the release due to the fact that the matter has not been concluded, and therefore, are not subject to release;

NOW, THEREFORE BE IT RESOLVED, by the Governing Body of the Township of Ocean, County of Monmouth that authorization is hereby given to release the following closed session minutes, subject to any appropriate redaction:

January 30, 2020
February 6, 2020
February 8, 2020

20-048 Authorize a Request for Proposals for the following:

a. Lease and/or Sale of 1515 Logan Road

WHEREAS, the Township Council is desirous of soliciting Request for Proposals for the following:

Lease and/or Sale of 1515 Logan Road

WHEREAS, specifications for the aforesaid items will be on file in the Office of the Township Engineer and will be available for inspection.

NOW, THEREFORE, BE IT RESOLVED by the Township Council of the Township of Ocean, County of Monmouth that it does hereby authorize the Township Clerk to advertise for bids for the aforesaid item(s) as per the specifications on file and will be received by the Township Manager in the West Wing Conference Room, Second Floor, Township Hall, 399 Monmouth Road, Oakhurst, New Jersey on a date to be determined.

BE IT FURTHER RESOLVED that a certified copy of this Resolution be forwarded to the following:

- 1. Township Manager
- 2. Township Engineer

Vote on Consent Items ONLY:

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

INDIVIDUAL ACTION:

Mayor Siciliano announced that **Resolution No. 20-058 will be held** until a subsequent meeting so that some minor revisions may be made.

RESOLUTIONS:

20-049 Accept the Cops in Shops - Summer Shore Initiative 2020 Grant

WHEREAS, the Township of has been selected as a recipient for the **Cops in Shops – Summer Shore Initiative 2020** grant program; and

WHEREAS, this program utilizes National Highway Traffic Safety Administration Funds administered through the New Jersey Division of Highway Traffic Safety; and

WHEREAS, \$4,400.00 to cover overtime wages for the Township of Ocean Police Officers to perform alcohol incentive programs has been made available to the Township of Ocean; and

WHEREAS, the Township of Ocean Police Chief has recommended that this allocation be accepted.

NOW, THEREFORE, BE IT RESOLVED by the Mayor and Council of the Township of Ocean, County of Monmouth, and New Jersey Division of Alcoholic Beverage Control, and Division of Highway Traffic Safety that the **Cops in Shops –Summer Shore Initiative 2020** grant is hereby accepted.

BE IT FURTHER RESOLVED that a certified copy of this resolution be forwarded to the following:

- 1. Director of Finance
- 2. Chief of Police

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

20-050 Authorize the extension of the lifeguard services contract with American Pool Inc. for the 2020 season at a cost not to exceed \$158,016.00

WHEREAS, the Township Council of the Township of Ocean authorized the award of a contract with American pool Enterprises, Inc. to provide lifeguard services at the Township of Ocean Community Pool and Tennis Facility for the 2019 season plus an option to extend said contract for two (2) one-year periods; and

WHEREAS, subsequent to the receipt of bids, the minimum wage in the State of New Jersey increased by \$2.00 per hour which necessitated the need to amend the total contract amount for the 2019 season by \$16,016.00 bringing the 2019 contract amount from 142,000.00 to \$158,016.00; and

WHEREAS, it is the recommendation of the Township Manager and the Director of Recreation that the contract with American Pool, Inc., Edison, NJ be extended for the 2019 season at a total contract amount of not to exceed \$158,016.00; and

WHEREAS, the Director of Finance has certified that funds for said contract are will be made available in the Township of Ocean Temporary and Final 2020 Municipal Budget under the following line item appropriation: Contract Services – Pool and Tennis Facility, account #0-01-28-798-247;

NOW, THEREFORE, BE IT RESOLVED by the Mayor and Township Council of the Township of Ocean, County of Monmouth, that it does hereby authorize the extension of the contract for lifeguard services at the Township of Ocean Community Pool and Tennis Facility for the 2020 season to American Pool, Inc., Edison, NJ at a total cost not to exceed \$158,016.00; and

BE IT FURTHER RESOLVED that a certified copy of this resolution be forwarded to the following:

- 1. American Pool, Inc.
- 2. Director of Finance
- 3. Director of Recreation

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

20-051 Authorize the purchase of three (3) Dodge Durango vehicle from Beyer Chrysler Dodge Jeep Ram under the Cranford Police Cooperative Pricing System, Identifier 47-CPCPS, at a cost not to exceed \$90,155.00

WHEREAS, N.J.S.A. 40:11-12 requires that any local contracting unit purchasing materials, supplies or equipment under a contract entered into by the State Division of Purchasing and Property shall authorize the award of such contract by Resolution of the Governing Body; and

WHEREAS, the Township of Ocean wishes to purchase three (3) 2020 Dodge Durango vehicles from Beyer Chrysler Dodge Jeep Ram, Morristown, NJ under the Cranford Police Cooperative Pricing System, Identifier 47-CPCPS at a total cost not to exceed \$90,155.00; and

WHEREAS, the Director of Finance has certified that funds will be provided by the Governing Body in the 2020 Temporary and Final Budget in the following account: Purchase of Township Police Vehicles - account #0-01-30-810-355; and

NOW, THEREFORE BE IT RESOLVED by the Township Council of the Township of Ocean, Monmouth County that is does hereby approve the Township Manager’s execution of a purchase order to Beyer Chrysler Dodge Jeep Ram, Morristown, NJ under the Cranford Police Cooperative Pricing System, Identifier 47-CPCPS, at a total cost not to exceed \$90,155.00;

BE IT FURTHER RESOLVED that a copy of the within Resolution, certified to be a true copy by forwarded to the following:

- 1. Director of Finance
- 2. Director of Community Development
- 3. Township Auditor

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

20-052 Authorize the Tax Collector to issue refunds to the following taxpayers who have overpaid their property taxes:

a. Block 179, Lot 9 \$2,218.21

WHEREAS, an duplicate payment of property taxes was made by both the property owner and Olde School Title Services, LLC for Block 179 Lot 9, 16 Hillside Terrace; and

WHEREAS, the refund should be made to Olde School Title Services, LLC, 247 Franklin Avenue, Nutley, NJ 07110;

NOW, THEREFORE BE IT RESOLVED, by the Township Council of the Township of Ocean, County of Monmouth that it does hereby authorize the Director of Finance to refund the said overpayment to the payer listed below.

Block	Lot	Owner/Payer Name	Amount	Reason
179	9	Olde School Title Services, LLC	\$2,218.21	Duplicate payment was made by property owner and Olde School Title Services, LLC for the 1 st quarter 2020.
Total Taxes Overpaid			\$2,218.21	

BE IT FURTHER RESOLVED that a copy of the within resolution be forwarded to the following:

- 1. Tax Collector
- 2. Township Auditor

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

b. Block 184, Lots 1 & 4 \$28,234.22

WHEREAS, Block 184, Lot 1 and Block 184, Lot 4 were combined into a single block known as Block 184, Lot 1.01 causing an overpayment of taxes for both Block 184, Lots 1 and 4 by Brielle Avenue LLC, Rose Avenue; and

WHEREAS, the refund should be made to Brielle Avenue, LLC, P.O. Box 777, Oakhurst, NJ 07755;

NOW, THEREFORE BE IT RESOLVED, by the Township Council of the Township of Ocean, County of Monmouth that it does hereby authorize the Director of Finance to refund the said overpayment to the payer listed below.

Block	Lot	Owner/Payer Name	Amount	Reason
184	1	Brielle Avenue, LLC	\$ 4,320.96	Overpayment was made by property owner due to combining of lots into a single lot known as Lot 1.01 for the 1 st quarter 2020.
184	4	Brielle Avenue, LLC	\$23,913.37	
Total Taxes Overpaid			\$28,234.22	

BE IT FURTHER RESOLVED that a copy of the within resolution be forwarded to the following:

- 1. Tax Collector
- 2. Township Auditor

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

20-053 Amend the contract for HVAC Maintenance awarded to Air Systems Maintenance, Inc. increasing the contract by \$500.00 from \$23,980.00 to \$24,480.00

WHEREAS, the Township Council of the Township of Ocean awarded a contract for heating and air conditioning services for all Township facilities to Air Systems Maintenance, Inc., Kenilworth, NJ for the period January 1 through December 31, 2018 on January 25, 2018; and

WHEREAS, the bid gave the Township of Ocean the right to extend said contract for two (2) one (1) year terms; and

WHEREAS, the Governing Body of the Township of Ocean authorized the extension of the contract with Air Systems Maintenance, Inc. one (1) year period from January 1 through December 31, 2020 via Resolution No. 20-022; and

WHEREAS, subsequent to the extension, it was realized that the contract amount needed to be increased by \$500.00 from \$23,980.00 to \$24,480.00 (plus labor at the rates as stated in their bid) in order to conform to the amount as submitted in their bid; and

WHEREAS, the Director of Finance has certified that funds for said contract will be made available by the Governing Body in the 2020 Temporary and Final Budget in the following account(s): Contract Services, account #0-01-26-772-247 and Outside Services Repairs, account #0-01-26-772-252;

NOW, THEREFORE, BE IT RESOLVED by the Township Council of the Township of Ocean, County of Monmouth that it does hereby authorize an amendment to the already approved extension of the contract for heating and air conditioning service at all Township facilities to Air Systems Maintenance, Inc., Kenilworth, NJ for the period of January 1 through December 31, 2020 increasing the contract amount by \$500.00 bringing the total contract amount from \$23,980.00 to \$24,480.00 (plus labor at the rates as stated in their bid); and

BE IT FURTHER RESOLVED that a certified copy of this Resolution be forwarded to the following:

- 1. Director of Finance
- 2. Public Works Department

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

20-054 Authorize the receipt of bids for the following abandoned vehicle(s):

a. 2000 Ford F150 \$4,825.00

WHEREAS, the procedure for disposition of abandoned vehicles in the possession of a municipality is set forth in N.J.S.A. 39:10A-1 et seq.; and

WHEREAS, N.J.S.A. 39:10A-1 provides that when such vehicles remain unclaimed by the owner for a period of 30 days, they may be sold at public auction in a public place. The public agency must give notice of the sale by certified mail, to the owner, if his name and address are known and to the holder of any security interest filed with the director of the Division of Motor Vehicles and by publication at least five (5) days before the date of the sale, in a newspaper published in the state and circulating in the municipality in which the motor vehicle is held; and

WHEREAS, the traffic safety officer of the Township of Ocean has requested that the vehicles listed below be auctioned, that proper notice of the sale shall be advertised as required.

	YEAR	MAKE	MODEL	VIN#	Minimum Bid
1.	2000	FORD	F150	1FTZF1723YNB14978	\$4,825

NOW, THEREFORE, BE IT RESOLVED by the Township Council of the Township of Ocean that the Township Manager, or his designee, is hereby authorized to receive bids for abandoned vehicles to be auctioned on **March 19, 2020**, at the Township of Ocean Town Hall, 399 Monmouth Road, Oakhurst, N.J. 07755; and

BE IT FURTHER RESOLVED that the prospective bidders may examine the vehicle to be auctioned at Brother’s Towing, 157 Westwood Ave. Long Branch, NJ 07740, between the hours of 10:00 AM and 2:00 PM, on **March 12, 2020**; and

BE IT FURTHER RESOLVED that a certified copy of this resolution be forwarded to the following:

- 1. Police Department (Traffic Bureau)
- 2. Towing Company
- 3. Township Manager

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

b. 2003 Nissan Altima \$7,990.00

WHEREAS, the procedure for disposition of abandoned vehicles in the possession of a municipality is set forth in N.J.S.A. 39:10A-1 et seq.; and

WHEREAS, N.J.S.A. 39:10A-1 provides that when such vehicles remain unclaimed by the owner for a period of 30 days, they may be sold at public auction in a public place. The public agency must give notice of the sale by certified mail, to the owner, if his name and address are known and to the holder of any security interest filed with the director of the Division of Motor Vehicles and by publication at least five (5) days before the date of the sale, in a newspaper published in the state and circulating in the municipality in which the motor vehicle is held; and

WHEREAS, the traffic safety officer of the Township of Ocean has requested that the vehicles listed below be auctioned, that proper notice of the sale shall be advertised as required.

	YEAR	MAKE	MODEL	VIN#	Minimum Bid
1.	2003	Nissan	Altima	1N4AL11D53C109842	\$7,990

NOW, THEREFORE, BE IT RESOLVED by the Township Council of the Township of Ocean that the Township Manager or his designee is hereby authorized to receive bids for abandoned vehicles to be auctioned on **March 19, 2020**, at the Township of Ocean Town Hall, 399 Monmouth Road, Oakhurst, N.J. 07755; and

BE IT FURTHER RESOLVED that the prospective bidders may examine the vehicle to be auctioned at Brother’s Towing, 157 Westwood Ave. Long Branch, NJ 07740, between the hours of 10:00 AM and 2:00 PM, on **March 12, 2020**; and

BE IT FURTHER RESOLVED that a certified copy of this resolution be forwarded to the following:

1. Police Department (Traffic Bureau)

2. Towing Company

3. Township Manager

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

c. 2006 GMC Envoy \$8,875.00

WHEREAS, the procedure for disposition of abandoned vehicles in the possession of a municipality is set forth in N.J.S.A. 39:10A-1 et seq.; and

WHEREAS, N.J.S.A. 39:10A-1 provides that when such vehicles remain unclaimed by the owner for a period of 30 days, they may be sold at public auction in a public place. The public agency must give notice of the sale by certified mail, to the owner, if his name and address are known and to the holder of any security interest filed with the director of the Division of Motor Vehicles and by publication at least five (5) days before the date of the sale, in a newspaper published in the state and circulating in the municipality in which the motor vehicle is held; and

WHEREAS, the traffic safety officer of the Township of Ocean has requested that the vehicles listed below be auctioned, that proper notice of the sale shall be advertised as required.

	YEAR	MAKE	MODEL	VIN#	Minimum Bid
1.	2006	GMC	ENVOY	1GKET16S766173102	\$8,875

NOW, THEREFORE, BE IT RESOLVED by the Township Council of the Township of Ocean that the Township Manager or his designee is hereby authorized to receive bids for abandoned vehicles to be auctioned on **March 19, 2020**, at the Township of Ocean Town Hall, 399 Monmouth Road, Oakhurst, N.J. 07755; and

BE IT FURTHER RESOLVED that the prospective bidders may examine the vehicle to be auctioned at Brother’s Towing, 157 Westwood Ave. Long Branch, NJ 07740, between the hours of 10:00 AM and 2:00 PM, on **March 12, 2020**; and

BE IT FURTHER RESOLVED that a certified copy of this resolution be forwarded to the following:

- 1. Police Department (Traffic Bureau)
- 2. Towing Company
- 3. Township Manager

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

20-055 Authorize the extension of the Payment in Lieu of Taxes Agreement for low income senior citizen housing located at Block 22, Lot 32.04 and the transfer of adjacent vacant land to the sponsor (Block 22, Lot 27.03), and approving the transfer of sponsor's assets and real property to an approved entity

WHEREAS, the Township Council of the Township of Ocean in accordance with the Limited-Dividend Nonprofit Housing Corporations or Associates Law, as amended, N.J.S.A. 55:16-1, et seq. (now repealed) (the “Limited Dividend Law”), previously entered into the Payment in Lieu of Taxes Agreement (the “PILOT Agreement”) with Ocean Senior Citizens Housing Corporation (the “Sponsor”) dated April 30, 1970, as amended in 1980, for the property located at Block 22, Lot 32.04, on the Tax Map of Ocean Township, New Jersey known as “Poplar Village”; and

WHEREAS, Poplar Village was developed in the early 1970’s and originally included 93 units financed through the New Jersey Housing and Mortgage Finance Agency (“NJHMF”) as a HUD 236 (Elderly) project, but suffered substantial damage from flooding as a result of Hurricane Irene in 2011, resulting in two-thirds of the units being taken out of the rental inventory; and

WHEREAS, Poplar Village was subsequently subdivided and in January 2016, the Township purchased the damaged units and underlying land (which included the community room and laundry units) through a Green Acres acquisition funded by a FEMA grant, subsequently demolishing the buildings; and

WHEREAS, the Sponsor used proceeds from the sale of the damaged units to pay off its New Jersey Housing and Mortgage Finance Agency mortgage and to create an escrow to repay a flexible subsidy loan from the United States Department of Housing and Urban Development (“HUD”); and

WHEREAS, the principal balance of the flexible subsidy loan is \$705,132, the approximate balance of the interest due is \$205,000, and the approximate balance of the escrow held to pay this loan is \$900,000; and

WHEREAS, the funds in the escrow account, the funds in other financial reserve accounts, and the Poplar Village real property and improvements thereon, constitute the “Project”; and

WHEREAS, the Project specifically serves low income senior citizens receiving federal subsidies from the United States Department of Housing and Urban Development (“HUD”), which subsidies are administered by the New Jersey Department of Community Affairs (“NJDC”) and

WHEREAS, the Sponsor constructed the Project, has managed and maintained affordable housing for low income senior citizens from the time of the PILOT Agreement to the present, and has agreed that the Project shall continue to provide affordable housing to low income senior citizens for the foreseeable future; and

WHEREAS, the Sponsor shall dissolve on April 30, 2020, which is fifty (50) years after its creation and in accordance with the restrictions of the Limited Dividend Law;

WHEREAS, the Township Council reiterates its findings set forth in the recitals of the Resolution of the Township of Ocean dated April 20, 1970, and that PILOT Agreement regarding the benefits to the Township of the Project's tax exemption and status as affordable senior housing and further finds that continuation of the tax exemption will benefit the Township; and

WHEREAS, the Project may or will be subject to requirements of the NJDCA Neighborhood Preservation Balanced Housing Program in accordance with N.J.S.A. 52:27D-320 and applicable rules promulgated thereunder at N.J.A.C. 5:43-1.1 et seq., and the Housing Assistance Payment Contracts executed between the Sponsor and the Commissioner of the Department of Community Affairs; and the New Jersey Housing and Mortgage Finance Agency (the "NJHMFA") requirements for future financing, as needed; and

WHEREAS, pursuant to the requirements of the NJDCA and NJHMFA, the governing body of the Municipality hereby determines that there is a need for the continuation of this housing project in the Township; and

WHEREAS, the Township Council and the Sponsor have determined it is in their mutual best interest to extend the PILOT Agreement to provide for an extension of the in lieu payment to the Township prior to Sponsor's dissolution; and

WHEREAS, the extension of the PILOT Agreement is authorized pursuant to New Jersey Senate bill S. 538, as amended, signed into law by Governor Phil Murphy on January 13, 2020, subject to the mutual consent of the Township and the Sponsor; and

WHEREAS, the Sponsor is seeking to transfer the Project to Poplar Village LLC, a New Jersey limited liability company (the "Company"), on or before Sponsor's imminent dissolution on April 30, 2020; and

WHEREAS, the Project currently includes thirty (30) occupied units, and two (2) units which are out of service and being used as community space due to the loss of the Project's former community buildings as part of the Township's Green Acres acquisition; and

WHEREAS, the Company intends to build a new community building (i.e., community room, office space, laundry room) for the Project in order to restore the full thirty two (32) units of affordable senior housing for residency and preserve the existing rental subsidy; and

WHEREAS, in anticipation of the need for land to construct the community building, the Sponsor desires to purchase from the Township a parcel adjacent to the Project which is identified as Block 22, Lot 27.03 in the Township's land records, which parcel will become part of the Project, subject to the PILOT Agreement and transferrable to the Company.

NOW, THEREFORE, BE IT RESOLVED by the Township Council of the Township of Ocean that:

1. The Council finds and determines that the Project will meet or meets and existing housing need in the Township;
2. The Council does hereby adopt the within Resolution and makes the determination and findings herein contained by virtue of, pursuant to and in the conformity with the provisions of the requirements of the NJHMFA and NJDCA with the intent and purpose that said agencies shall rely thereon in extending financing to the Project;
3. The PILOT Agreement shall be extended under S. 538 so long as the Project remains subject to affordability controls pursuant to: (i) federal or state project-based assistance, such as its current HUD subsidies or any other rental assistance program; (ii) compliance with the Uniform Housing Affordability Controls (N.J.A.C. 5:80-26.1 et seq.); or (iii) rent and income limits established by the federal Low-Income Housing Tax Credit program;
4. That all provisions of the PILOT Agreement, as amended, shall remain in full force and effect;
5. That in furtherance of restoring the two out-of-service units back to service, the Township will negotiate a Purchase and Sale Agreement, assignable to Company, for the real property

located at Block 22, Lot 27.03 with the Sponsor for use in the construction of a community building;

- 6. That subject to additional approval by HUD or the NJDCA, the Sponsor may transfer the Project to the Company, due to the Sponsor’s imminent dissolution;
- 7. That the Sponsor may assign the PILOT Agreement as extended to the Company;
- 8. That the Company will be bound by the PILOT Agreement and this Resolution upon transfer of the Project;
- 9. That the Sponsor may also assign any executed Purchase and Sale Agreement for the real property located at Block 22, Lot 27.03 to the Company; and
- 10. That Counsel is authorized to prepare, and the Mayor is hereby authorized to execute any additional documents that may be necessary to implement and carry out the intent of this Resolution.

BE IT FURTHER RESOLVED that a certified copy of this resolution be forwarded to the following:

- 1. Township Counsel
- 2. Township Tax Assessor
- 3. President of Ocean Senior Citizens Housing Corporation

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

20-056 Authorize the following 2020 contracts for the William F. Larkin Golf Course at Colonial Terrace:

a. Geese Chasers, LLC

WHEREAS, the Township of Ocean owns and operates the William F. Larkin Golf Course at Colonial Terrace; and

WHEREAS, the Township of Ocean is desirous of providing environmentally safe goose control measures to deter geese from the grounds of the facility; and

WHEREAS, the Township of Ocean solicited, and received, price quotes from the following two (2) companies:

Geese Chasers, LLC	\$ 899.00 per month	\$ 8,990.00
Geese Police	\$1,300.00 per month	\$13,000.00

WHEREAS, the Township of Ocean desires to enter into an annual agreement with Geese Chasers, LLC, 42 Broadacre Dr., Mt. Laurel, NJ 08054 for the provision of the aforementioned services in an amount not to exceed \$899.00 per month, \$8,990.00 for the ten (10) month period February through November 2020; and

WHEREAS, the Director of Finance has certified that funds will be made available by the Governing Body in the Township of Ocean Temporary and Final 2020 Municipal Budget under the

following line item appropriation: William F. Larkin Golf Course at Colonial Terrace – Outside Services – account #0-01-28-799-252;

NOW, THEREFORE, BE IT RESOLVED by the Township Council of the Township of Ocean that the Township Manager is hereby authorized to execute a service contract with Geese Chasers, LLC, Mt. Laurel, NJ for 2020 goose control measures at the William F. Larkin Golf Course at Colonial Terrace at a cost not to exceed \$899.00 per month, \$8,990.00 for the ten (10) month period February through November 2020; and

BE IT FURTHER RESOLVED that a copy of this resolution be forwarded to the following:

- 1. Geese Chasers, LLC
- 2. Department of Human Services
- 3. Director of Finance

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

b. Vic Gerard Golf Cars, LLC

WHEREAS, the Township of Ocean will resume operations of the William F. Larkin Golf Course at Colonial Terrace on or about April 1, 2020; and

WHEREAS, the Township of Ocean intends to provide golf cars available for rent by course users during the operating season; and

WHEREAS, the Township of Ocean solicited, and received, price quotes from the following companies:

Vic Gerard Golf Cars	\$3,220.00 per month	\$19,320.00 per year
Golf Car Specialties	\$3,250.00 per month	\$19,500.00 per year plus an additional \$1,560.00 per season

WHEREAS, the Township of Ocean desires to enter into a full service lease agreement with Vic Gerard Golf Cars, LLC, 281 Squankum Road, Farmingdale, NJ 07727 for the provision of 23 reconditioned Club Car gasoline golf cars and two Club Car utility vehicles for the 2020 operating season in an amount not to exceed \$19,320.00; and

WHEREAS, the Director of Finance has certified that funds will be made available by the Governing Body in the Township of Ocean Temporary and Final 2020 Municipal Budget under the following line item appropriation: William F. Larkin Golf Course at Colonial Terrace – Outside Services – account #0-01-28-799-252;

NOW, THEREFORE, BE IT RESOLVED by the Township Council of the Township of Ocean that the Township Manager is hereby authorized to execute a Full Service Lease Agreement with Vic Gerard Golf Cars, LLC for the 2020 William F. Larkin Golf Course at Colonial Terrace operating season at a cost not to exceed \$19,320.00; and

BE IT FURTHER RESOLVED that a copy of this resolution be forwarded to the following:

- 1. Vic Gerard Golf Cars
- 2. Department of Human Services
- 3. Director of Finance

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

20-057 Authorize a contract with Millennium Strategies, LLC to provide grant writing consulting services at a cost of \$3,000.00 per month, not to exceed \$36,000.00

WHEREAS, the Township of Ocean wishes to engage the services of a grant writing consultant to seek out both public and private grant opportunities to help offset future increases in property taxes; and

WHEREAS, while the Local Public Contracts Law (N.J.S.A. 40A:11-5(1)(a)) does not require competitive bidding for this position as an extraordinary unspecifiable service, the Township of Ocean solicited proposals from entities and did receive a response from Millennium Strategies, LLC, Morristown, NJ; and

WHEREAS, Representatives from Millennium Strategies made a presentation to the Township of Ocean Governing Body identifying the services they could provide to the Township, and the related costs of those services; and

WHEREAS, the Township Manager has recommended that a contract be awarded to Millennium Strategies LLC to provide grant writing consulting services for a flat monthly retainer of \$3,000.00 inclusive of fees, travel and associated expenses;

WHEREAS, the Director of Finance has certified that funds will be made available by the Governing Body in the Township of Ocean Temporary and Final 2020 Municipal Budget under the following line item appropriation: Township Manager – Professional Services – account #0-01-20-703-201;

NOW, THEREFORE, BE IT RESOLVED by the Governing Body of the Township of Ocean, County of Monmouth, State of New Jersey that Millennium Strategies LLC, Morristown, NJ is hereby awarded a contract for grant writing consulting services for a flat monthly retainer of \$3,000 inclusive of fees, travel and associated expenses through December 31, 2020 for an estimated total contract amount not to exceed \$36,000 pursuant to the terms and conditions of their proposal; and

BE IT FURTHER RESOLVED that the Mayor and Municipal Clerk are hereby authorized and directed to execute an Agreement for the provision of such services, a copy of which shall be maintained by the Clerk and advertised in the Township’s official newspaper pursuant to law

BE IT FURTHER RESOLVED that a copy of the within Resolution, certified to be a true copy by forwarded to the following:

- 1. Director of Finance
- 2. Township Auditor

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

20-059 Ratify the Collective Bargaining Agreement with the PBA Local 57 for the period January 1, 2020 through December 31, 2023

WHEREAS, the Township of Ocean desires to enter into a four (4) year agreement with both PBA Local #57 for the period January 1, 2020 through December 31, 2023; and

WHEREAS, said agreements shall be entitled as follows: “Agreement between Township of Ocean, County of Monmouth and the PBA Local #57 of the Ocean Township Police Department” and shall be incorporated herein by reference; and

WHEREAS, the Director of Finance has certified that funds are available in the 2020 Temporary and Final Budget and will be made available in subsequent years budgets;

NOW THEREFORE, BE IT FURTHER RESOLVED, by the Township Council of the Township of Ocean that it does hereby approve the aforementioned labor agreement between the Township of Ocean and PBA Local #57 for the four (4) year period January 1, 2020 through December 31, 2023; and

BE IT FURTHER RESOLVED that authorization is hereby given for the Mayor and Municipal Clerk to execute the aforementioned Agreements; and

BE IT FURTHER RESOLVED, that a copy of this Resolution be forwarded to the following:

- 1. Township Manager
- 2. Director of Finance
- 3. Chief of Police
- 4. President, PBA Local #57

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

20-060 Authorize a contract with MTB, LLC for the refurbishment of the Lobby and Locker Rooms and the Township of Ocean Community Pool and Tennis Facility at a cost not to exceed \$148,800.00

WHEREAS, the Township Council of the Township of Ocean authorize receipt of Sealed Bids to Refurbish the Lobby and Locker Rooms at the Township of Ocean Community Pool and Tennis Facility on September 26, 2019; and

WHEREAS, the Township Clerk did duly advertise said Request for Proposals in the Asbury Park Press on January 28, 2020 to receive said bids; and

WHEREAS, in connection therewith, the following five (5) bids were received by the Township of Ocean on February 20, 2020:

MTB, LLC, Neptune City, NJ	\$148,800.00
Frankoski Construction, East Orange, NJ	\$381,381.80
JNP Construction, Jackson, NJ	\$388,300.00

WHEREAS, the following two bidders submitted Sealed Bids, however, they were disqualified: Salazar & Associates, Inc., Union, NJ and J.H. Williams Enterprises, Inc., Moorestown, NJ; and

WHEREAS, the following failed to submit a response after picking up a bid: King Solomon & Son, LLC, East Brunswick, NJ, Kappa Construction Corp., Ocean, NJ and V & K Construction, Edison, NJ; and

WHEREAS, it was determined that the lowest responsible bidder meeting specifications was MTB, LLC, at a cost not to exceed \$148,800.00; and

WHEREAS, the Township Manager and Township Engineer have recommended that a contract be awarded to MTB, LLC, Neptune City, NJ as per their proposal for the Refurbishment of the Lobby and Locker Rooms at the Township of Ocean Community Pool and Tennis Facility at a cost not to exceed \$148,800.00; and

WHEREAS, the Director of Finance has certified that funds are available under the following account(s): Capital Improvement Fund, account #C-04-55-958-912;

NOW, THEREFORE, BE IT RESOLVED by the Township Council of the Township of Ocean, County of Monmouth that it does hereby authorize the contract for the Refurbishment of the Lobby and Locker Rooms at the Township of Ocean Community Pool and Tennis Facility MTB, LLC, Neptune City, NJ at a cost not to exceed \$148,800.00; and

BE IT FURTHER RESOLVED that a certified copy of this Resolution be forwarded to the following:

- 1. Director of Finance
- 2. Environmental Commission
- 3. MTB, LLC

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

20-061 Award a contract with East Coast Protection Services for Unarmed Security at the Municipal Court at a cost of \$25.00 per hour per office with a not to exceed amount of \$20,000.00

WHEREAS, the Township Council of the Township of Ocean authorize receipt of Sealed Bids for Unarmed Security Officers for the Municipal Court on October 10, 2019; and

WHEREAS, the Township Clerk did duly advertise said Receipt of Sealed Bids in the Coaster on December 19, 2019; and

WHEREAS, in connection therewith, the Township of Ocean did not receive any responses; and

WHEREAS, the Township Clerk did re-advertise said Receipt of Sealed Bids again in the Asbury Park Press on February 5, 2020 and again did not receive any timely submissions; and

WHEREAS, in accordance with provisions of the Local Public Contracts Law, N.J.S.A. 40A:11, the Township of Ocean did negotiate with East Coast Protection Services, Asbury Park, NJ to provide said Unarmed Security for the Municipal Court at a fee of \$25.00 per hour per officer with a not to exceed contract amount of \$20,000.00 for the period March 1, 2020 through February 22, 2022; and

WHEREAS, the Township Manager and Chief of Police have recommended that a contract be awarded to East Coast Protection Services, Asbury Park, NJ to provide said Unarmed Security

for the Municipal Court at a fee not to exceed \$25.00 per hour per officer for the period March 1, 2020 through February 22, 2022; and

WHEREAS, the Director of Finance has certified that funds will be provided by the Governing Body in the 2020 Temporary and Final Budget in the following account: Police Department Contractual Services, account #0-01-25-745-247;

NOW, THEREFORE, BE IT RESOLVED by the Township Council of the Township of Ocean, County of Monmouth that it does hereby authorize the contract to provide said Unarmed Security for the Municipal Court to East Coast Protection Services, Asbury Park, NJ at a cost of \$25.00 per hour per officer with a not to exceed contract amount of \$20,000.00 for the period March 1, 2020 through February 28, 2022; and

BE IT FURTHER RESOLVED that a certified copy of this Resolution be forwarded to the following:

- 1. Director of Finance
- 2. Police Chief
- 3. East Coast Protection Services

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

20-062 Authorize the joint submission of the Local Efficiency Achievement Program (LEAP) Grant with the Township of Ocean Board of Education

WHEREAS, the State of New Jersey has allocated \$150,000.00 within each county for a statewide total of \$3.15 million in Local Efficiency Achievement Program (LEAP) funds to promote innovation among peer local units across New Jersey; and

WHEREAS, the Department of Community Affairs, Division of Local Government Services (DLGS) administers the LEAP grant program; and

WHEREAS, the LEAP Challenge Grant exists to challenge municipalities and counties to collaborate on more extensive partnership and collaborations to produce efficiencies through Shared Services; and

WHEREAS, the Township Board of Education and Township of Ocean Municipality have determined to apply for a LEAP Challenge Grant through the State of New Jersey Local Efficiency Achievement Program in the amount of \$150,000.00; and

WHEREAS, the Township of Ocean Board of Education has agreed to be the lead agency in this program; and

WHEREAS, the State of New Jersey has made LEAP grants available to assist local units to study, develop and implement new shared service initiatives; and

WHEREAS, the purpose of the project submitted in this grant application is intended to provide benefits to the participant local units’ residents through sharing of maintenance and grounds facilities and services;

NOW, THEREFORE, BE IT RESOLVED by the Governing Body of the Township of Ocean, that the Township of Ocean does hereby join the Township of Ocean Board of Education in applying for a LEAP challenge grant to support undertaking this endeavor; and

BE IT FURTHER RESOLVED that a copy of the within Resolution, certified to be a true copy by forwarded to the following:

- 1. Director of Finance
- 2. Township of Ocean Board of Education

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve		X			
Motion to Second				X	
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

ORDINANCES:

Adoption(s):

Ord 2332 – (Coaster)

An ordinance amending and supplementing Chapter XXI of the Revised General Ordinances of the Township of Ocean to add the AH-G Zone - Affordable Housing Golf Course Residential Inclusionary Overlay zone

The following vote was taken to open the Public Hearing on Ordinance #2332:

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve	X				
Motion to Second			X		
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

Public Comments:

Steve Levy asked if the Governing Body has been approached by any developer

Mayor Siciliano responded no.

Mr. Levy inquired why the Township would change from an R-1 zone to an R-8 zone, which would provide for greater density

Mayor Siciliano stated the Township is adopting its COAH Plan and need to make sure all the properties in that plan have the same density requirements.

Mr. Arbus discussed the Township’s COAH obligation including an original number of required affordable units of 1,391 and an unmet need of 1,111 units.

Vivian Hammel asked why the Township has to decrease the property values in their section of the Township as opposed to building the affordable units closer to Route 35.

Mr. Arbus discussed that the Township has provided for these units throughout the Township.

Lorraine Tobias inquired if the Township will be required to build extra schools

Councilmember Acerra stated the enrollment in the schools has actually decreased recently.

Abraham Dweck asked if the zone change in being done with the approval of both Deal Golf and Country Club and Hollywood Golf Course

Mayor Siciliano said they were notified of the proposed change.

Mr. Dweck asked if the golf courses were given any incentives

Mayor Siciliano responded that they have not been given anything

Mr. Dweck stated that the Borough of Deal set aside the golf course as Open Space and why has the Township of Ocean not done the same.

Mayor Siciliano stated that it was easy for Deal to do that since most of the golf course is located in the Township of Ocean and not in Deal.

Nancy Hohn, Esq, COAH Attorney, gave an explanation about the zoning and also that a challenge could be mounted through the courts.

Joe Marsico stated it could be worse than what is being proposed. He also would hope that the areas being affected would be open if they were going to be selling their properties. Mr. Marsico also asked how the golf course was doing financially.

Fred Ezon asked if the home values have decreased in other municipalities where affordable housing has been built.

Jack Mamiye, in response to previous questions about property values, did research on affordable housing and found that contrary to most beliefs, property values did not go down and crime did not increase in areas where Mt. Laurel (Affordable) housing has been built.

John Huss, who is a member at Deal Golf and Country Club, stated that membership has been increasing.

There were no additional Public Comments on Ordinance No. 2332 at this time.

The following vote was taken to close the Public Hearing on Ordinance #2332:

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve	X				
Motion to Second			X		
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

The following vote was taken to adopt Ordinance #2332 and advertise according to law:

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve	X				
Motion to Second			X		
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

Ord 2333 – (Coaster)

An ordinance amending and supplementing Chapter XXI, Article IV, Section 21-51.47 of the Revised General Ordinances of the Township of Ocean - Land Development Ordinance entitled: Mixed Use Inclusionary Development in the C-1 Zone

Mayor Siciliano explained this ordinance changes the percent of affordable units from 15% to 20% in the C-1 Zone. Everything else in the C-1 zone remains the same.

The following vote was taken to open the Public Hearing on Ordinance #2333:

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve	X				
Motion to Second			X		
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

Public Comments:

Michael Lougee inquired about Section 8 housing

Mayor Siciliano stated the Township does not have any Section 8 housing

There were no additional Public Comments on Ordinance No. 2333 at this time.

The following vote was taken to close the Public Hearing on Ordinance #2333:

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve	X				
Motion to Second			X		
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

The following vote was taken to adopt Ordinance #2333 and advertise according to law:

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve	X				
Motion to Second			X		
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

Ord 2334 – (Coaster)

An ordinance amending and supplementing Chapter XXI of the Revised General Ordinances of the Township of Ocean entitled: Land Development Ordinance to address the Roosevelt Avenue Inclusionary Zone

Mayor Siciliano announced that Ordinance No. 2334 will not be adopted as it is being replaced with Ordinance No. 2334A, which is on the February 27, 2020 Agenda for Introduction.

The following vote was taken to **WITHDRAW Ordinance #2334**:

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve	X				
Motion to Second			X		
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

Introduction(s):

Mayor Siciliano stated the difference between Ordinance No. 2334 (which was withdrawn) and Ordinance No. 2334A is that in the new ordinance, only 2 affordable units will be built on site with the developer making a monetary contribution so that the remaining 3 units may be built at a different location within the Township. Originally, Ordinance No. 2334 had all 5 units being built on the Roosevelt Avenue site.

Ord 2334A – (P.H. 3/26 Coaster)
An ordinance amending and supplementing Chapter XXI of the Revised General Ordinances of the Township of Ocean entitled: Land Development Ordinance to address the Roosevelt Avenue Inclusionary Zone

- PURPOSE.** The purpose of this Roosevelt Avenue Inclusionary Overlay Zone is to create an overlay zone for certain properties within the existing Multi-Family Residential zone for Lots 11, 12 and 22 of Block 22, as shown on the official tax maps of the Township of Ocean, County of Monmouth. This overlay zone is created pursuant to the terms of a settlement agreement dated _____, entered in litigation entitled *Roosevelt Properties LLC v. Township of Ocean*, Docket. No. MON-L-5930-09 and that resolves all issues in that case as well as in *In re Ocean Township*, Docket. No. MON-L-2531-15. The provisions set forth herein shall permit the development of twenty-two (22) units of townhouses and a stacked townhouse, and at a higher density than permitted in the existing and underlying zone to accommodate the required provision of affordable housing.
- CONFLICTING PROVISIONS.** Provisions of this Roosevelt Avenue Inclusionary Overlay Zone Ordinance shall supersede any provision of the Township of Ocean Land Development Ordinance as currently amended and/or supplemented, which conflicts with, or is contrary to, the provisions set forth in this Overlay Zone Ordinance.
- PERMITTED PRIMARY USES.** All uses permitted in the underlying zone continue to be permitted in compliance with the standards of the underlying zone. In addition, multi-family units, consisting of townhouses and apartment flats within a townhouse structure shall be permitted, provided that 22 such multi-family residential units may be constructed in accordance with the development standards listed below for this zone, of which two (2) shall be moderate-income affordable units provided as apartment flats located within one townhouse structure. Two market rate flats will be located in the first building next to Roosevelt Avenue along with the two affordable flats. All other multi-family units shall be market rate townhouse units. In addition to the on-site construction of two (2) moderate income units, the developer shall make a payment into the Housing Trust Fund of Ocean Township of \$475,000 or \$23,750 per market unit in lieu of constructing three (3) low income units including one (1) very-low income unit.

4. **DEFINITIONS:** For purposes of this ordinance, the terms below have the following meanings:

APARTMENT FLAT- A dwelling unit consisting of a single story or level, which may be at ground level or above a ground level unit and shall be located in a building type that also includes townhouses.

LOT LINE, FRONT – Any lot line, or segment thereof, that is collinear with the right-of-way line of a public thoroughfare.

LOT LINE, REAR – The lot line (or lines) of a tract to be developed pursuant to the Multi-Family Residential Overlay provisions of the Ordinance which is opposite and generally parallel to the LOT LINE, FRONT of the tract from which primary access to the development obtains.

LOT LINE, SIDE – Any lot line that is not a LOT LINE, FRONT or a LOT LINE, REAR.

5. **PERMITTED ACCESSORY USES.** All accessory uses permitted in the underlying zone continue to be permitted.
6. **DEVELOPMENT (BULK) STANDARDS.** The following bulk standards shall apply to the development of any property located in the Roosevelt Avenue Inclusionary Overlay zone:
- a. More than one (1) primary building may be constructed per lot;
 - b. Minimum Gross Lot Area: 10 acres;
 - c. Minimum Lot Frontage: 125 feet;
 - d. Minimum Lot Depth: 125 feet;
 - e. Minimum Front Yard Setback: 30 feet;
 - f. Minimum Side Yard Setback: 15 feet;
 - g. Minimum Rear Yard Setback: 100 feet;
 - h. Minimum Setback from Pavement of Internal Roadway: 24 feet from front of building, excluding roof soffits the fascia of which shall be permitted to have setbacks of 22 feet;
 - i. Maximum Principal Building Height: 38 feet from the garage floor to the highest roof point;
 - j. Maximum Number of Levels of Living Space: 3;
 - k. Maximum Building Coverage 7.5% of total lot area;
 - l. Maximum Impervious Lot Coverage: 15% of total lot area;
 - m. Number of Dwellings per Building: 8 dwellings;
 - n. Maximum Dwelling Unit Density: 2.5 dwelling units per acre;
 - o. Maximum Length of Building: 200 feet;
 - p. Minimum Distances Between Buildings:
 - i. Front to Front: 50 feet;
 - ii. Rear to Front: 50 feet;
 - iii. Front to Side: 50 feet;

- iv. Rear to Rear: 50 feet excluding building eaves which shall be permitted to extend a maximum of twenty four (24) inches beyond the primary vertical planes of the building walls below;
 - v. Rear to Side: 50 feet; and
 - vi. Side to Side: 20 feet.
- q. Onsite Emergency Vehicle Access/Circulation: Every onsite street and/or common access/circulation drive shall meet, or exceed NFPA requirements for a “fire access road.”
- r. Subject to the development standards set forth in this Inclusionary Overlay Zone Ordinance, and notwithstanding the provisions of any other ordinance, market priced units may be constructed anywhere in the Inclusionary Overlay Zone permitted by the New Jersey Department of Environmental Protection, including flood hazard areas. Subject to the development standards set forth in this Inclusionary Overlay Zone Ordinance, and notwithstanding the provisions of any other ordinance, moderate income units may be constructed anywhere in the Inclusionary Overlay Zone permitted by the New Jersey Department of Environmental Protection, except they may only be constructed on the portion of the zone outside the Flood Hazard Area delineated by the New Jersey Department of Environmental Protection. Documents showing the location of proposed units with regard to NJDEP-approved Floodway and Flood Hazard areas shall be disclosed to all prospective buyers prior to the entry of a contract for sale.
- s. Access Driveways and Onsite Parking - Access driveways and onsite parking shall be provided in strict compliance with requirements of N.J.A.C. 5:21-4.14, subject to the right of the applicant to seek relief from the provisions of the RSIS, with the understanding that the Planning Board, in its sole discretion, shall determine whether or not to grant relief to the applicant, and the following:
- i. All interior access driveways shall be curbed.
 - ii. All interior access driveways shall have minimum travelled-way pavement widths (i.e., curb face to curb face) of twenty-four feet (24’).
 - iii. A continuous concrete walk, four feet (4’) in width, shall be provided along the entire building-side length of every interior access driveway. A 4-foot wide concrete walk shall connect the interior of the development with each, and every, public right-of-way adjoining the development site.
 - iv. The minimum distance between any travelled way pavement edge and any point upon the architectural front façade of any building shall be twenty four feet (24’) excluding roof soffits the fascia of which shall be permitted to have setbacks of twenty two feet (22’).
 - v. All market-priced residential units shall include, at a minimum, an attached, fully-enclosed, one-car garage having minimum inside clear dimensions of twelve feet (12’) wide by twenty feet (20’) deep. Direct access shall be provided between the interior of any garage and the interior living space of the dwelling unit of which the garage is a part.
 - vi. Every market-priced unit shall be provided with a paved driveway having a minimum width of ten feet (10’) which shall provide a continuous paved connection between the unit’s garage and the travelled way upon which the unit fronts.
 - vii. On-street parallel parking shall not be permitted. All parking spaces not located within enclosed garages or upon residential driveways shall be provided within onsite common parking lots or within onsite common parking areas located directly adjacent to the travelled way of a development access driveway.

viii. Onsite parking lots and parking areas shall be screened from view of offsite persons by six-foot (6') tall, architecturally solid-faced fencing and landscaping designed to minimize impacts of vehicle headlight illumination upon offsite properties. The designs of all such fencing and landscaping shall be subject to site-specific review and approval of the Planning Board and its Professional Staff.

ix. No point upon the paved surface of any onsite parking lot or parking area, excluding townhouse driveways, shall be located within fifty feet (50') of a development site front boundary line and/or no closer than eight feet (8') to a development site side or rear boundary line except that, such pavement may be located as close as four feet (4') to a development site side or rear boundary line if a six foot (6') tall brick or stone masonry screen wall, which will aesthetically match the architectural design of the townhomes on both sides of the wall, of a design acceptable to the Planning Board and its Professional Staff, is provided in place of the required solid faced fencing.

- t. All outdoor spaces reserved for private use by residents of one (1) single dwelling unit including, but not limited to, patios, decks and balconies, excluding building front entry porches having areas of thirty-two (32) square feet or less, shall be located along, or upon, exterior building facades other than architectural front facades and shall not face parking areas or access drives of the development.
- u. No portion of any horizontal structural member nor any exterior facade element of any building shall be located at an elevation lower than the New Jersey Flood Hazard Area Design Flood Elevation for the site provided, however, that building design and construction shall strictly comply with all applicable building codes and/or NJDEP requirements in effect at the time of construction.
- v. The buffer requirements of Section 21-47.1.d.1. shall not apply. Where a building, parking space, drive aisle or drainage structure is located within 100' of an adjacent lot, a solid fence shall be constructed in accordance with the requirements of Section 21-48. Unless located in the required front yard, such fence shall be 6' in height.
- w. The recommended maximum townhouse driveway pavement slope is 7.50% with driveway surface slopes no greater than 3.00% within ten (10) feet of a garage door. At the sole discretion of Developer's New Jersey Professional Engineer, steeper driveway surface slopes shall be permitted upon signed/sealed construction drawings submitted for review during the Site Plan approval process. In no case, however, shall the elevation differential between a point along the gutter line of any onsite circulation drive and any point upon an adjacent townhouse driveway surface located along the line perpendicular to said gutter line from said gutter line point be greater than eighteen (18) inches.
- x. Within this Inclusionary Overlay Zone, ground surface elevation changes of two (2) feet or more shall be permitted if, and only if, (1) all yard areas of the site located within twenty (20) feet of a townhouse unit and having ground surface elevations above that of the New Jersey Flood Hazard Area Design Flood Elevation (NJFHADFE) for the site as established by the NJDEP, have slopes no greater than 25% (i.e. 1V:4H); and, (2) all other yard areas of the site above the NJFHADFE shall have surface grading no steeper than 40% (i.e., 1V:2.5H) and be permanently stabilized with approved ground cover.
- y. No wall or structure constructed upon, or within ten (10) feet of, a tract boundary line shall serve as an earth retaining structure unless it results in a lowering of the ground surface of the subject tract to elevation levels below those of the adjacent property at all points of its length.
- z. No point upon the pavement surface of any onsite street and/or common access/circulation drive shall have an elevation below that of the New Jersey Flood Hazard Area Flood Elevation for the site.

7. AFFORDABLE HOUSING REQUIREMENTS.

- a. Twenty percent (20%) of the units constructed shall be affordable to low and moderate income households of which at least 50 percent of the units shall be low income units.
- b. In lieu of reserving twenty percent (20%) of all units for low and moderate income households, the developer shall have the right, pursuant to the Settlement Agreement, to satisfy its 20 percent affordable housing obligation through the on-site construction of two (2) moderate income for-sale units and an in-lieu contribution to the Township for three (3) low income affordable units including one (1) very-low income unit.
- c. The two (2) on-site affordable units shall address the affordable housing requirements of the Township of Ocean, the Council on Affordable Housing ('COAH') at N.J.A.C. 5:93 and the Uniform Housing Affordability Controls ('UHAC') per N.J.A.C. 5:80-26.1. The two (2) affordable units shall be provided within one stacked townhouse structure, with one (1) unit provided as a two-bedroom unit and one (1) as a three-bedroom unit. Pursuant to COAH's phasing requirements at N.J.A.C. 5:93-5.6(d), both on-site affordable housing units must receive a certificate of occupancy ('C.O.') before the tenth (10th) of the 20 total market-rate units receives a C.O. The affordable units shall remain affordable to a moderate income household for a period of at least 30 years by virtue of a deed restriction per UHAC at N.J.A.C. 5:80-26.11(a). UHAC at N.J.A.C. 5:80-26.3(f) requires that affordable units utilize the same type of heating source as market units within the affordable development. The townhouse units shall comply with the accessibility and adaptability requirements of the International Building Code – NJ Edition 2015 ("IBC-NJ 2015") and the affordable stacked townhouse units shall comply as well with COAH's accessibility and adaptability rules, including, but not limited to, N.J.A.C. 5:97-3.14. COAH Regulations at N.J.A.C. 5:93-11 and UHAC at N.J.A.C. 5:80-26.15 requires an affirmative marketing program for the affordable units. Furthermore, pursuant to N.J.A.C. 5:93-11.3(e), the cost of affirmatively advertising the affordable units is to be the developer's responsibility. The developer shall enter into an agreement with an experienced affordable housing administrative agent per UHAC at N.J.A.C. 5:80-26.14 to oversee the placement of a deed restriction on the units, household income qualification, setting the moderate income sales prices at an average of no more than 55% of the regional median income, ongoing affirmative marketing and administrative oversight efforts, etc.
- d. In lieu of construction of three (3) of the residential units as affordable to very-low and low income households on site, the developer shall make a payment into the Housing Trust Fund of Ocean Township of \$158,333.33 for each of the three (3) very-low and low income units, for a total contribution of \$475,000. The developer shall pay into the Ocean Township Affordable Housing Trust fund the sum of \$23,750 per market priced unit. The developer shall pay one half of this sum as a condition of receipt of the building permit for that unit and the remainder as a condition of receipt of the final certificate of occupancy for that unit.

8. BULK STANDARDS AS APPLIED TO ACCESSORY STRUCTURES. All accessory structures within this zone shall be constructed in accord with the provisions of sect. 21-24A.2(a)(2).

9. COMMON OWNERSHIP AND MAINTENANCE. If property developed in accordance with the development standards for this zone is subdivided into separate residential lots, all common lands not deeded to and accepted by the municipality shall be owned in common by a non-profit Homeowner's Association for the development within this overlay zone in accordance with the provisions of section 21-31.3. Maintenance of any such common area shall be in accordance with the provisions of section 21-31.2(b)(8)(o)(17). All homeowners' documents shall be submitted, reviewed and approved as part of the land use application.

10. COST GENERATION AND DEVELOPMENT REVIEW PROCESS. Pursuant to the executed settlement agreement referenced in para. 1 (PURPOSE) above, Roosevelt is entitled to all of the benefits and burdens afforded to developers of inclusionary developments by the FHA, COAH's regulations, and the UHAC regulations. However, per the agreement, this Ordinance satisfies the Township's obligation to remove all "cost generative features not necessary for

health or safety” as set forth in N.J.A.C. 5:93-10 et seq. If the Township or Planning Board impose any *additional* requirement that may be considered improperly cost generative and/or not expressly or impliedly required by the agreement or this ordinance, (a) Roosevelt may request a determination by the Special Master as to the appropriateness of said additional requirement; and (b) the Township and its Planning Board have the right to oppose Roosevelt’s claim regarding said cost-generative requirement.

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve	X				
Motion to Second			X		
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

Ord 2335 – (P.H. 3/26 Coaster)
An Ordinance authorizing the Private Sale of a portion of Non-Conforming Real Property known as Block 25.05, Lot 5 to a the contiguous property owner

WHEREAS, NJSA 40A:12-13(B)(5) authorizes the sale of municipally owned property which is less than the minimum size required for development under the Municipal Zoning Ordinance; and which is without any capital improvement thereon, to the owners of contiguous real property; and

WHEREAS, the Township Council has found and determined that a portion of the real property designated as **Block 25.05, Lot 5** aforesaid (hereinafter the “Property”) will not be needed for public use and may be offered for sale to the contiguous owners pursuant to the cited statues; and

WHEREAS, the Property is more fully described by the legal description attached as Schedule A; and

WHEREAS, the Tax Assessor of the Township of Ocean has recommended the sale of the subject lot with a **minimum bid price of \$34,400.00** “Schedule B” attached;

NOW, THEREFORE, BE IT ORDAINED by the Township Council of the Township of Ocean, County of Monmouth, State of New Jersey as follows:

SECTION I

Within five (5) days following final enactment of this ordinance, the Township Clerk shall post on the regular Town Hall bulletin board and advertise in a newspaper circulating the Township, a notice setting forth the following information as to the sale of a portion of **Block 25.05, Lot 5** (Chatham Avenue) of the Township of Ocean Tax Map, whose sale is hereby authorized. A copy of this notice shall be mailed by certified mail by the Township Clerk to all contiguous property owners of the property being offered for sale within the aforesaid five (5) day period.

PUBLIC NOTICE

TOWNSHIP OF OCEAN – MONMOUTH COUNTY

TAKE NOTICE that an ordinance of the Township of Ocean adopted pursuant to NJSA 40A:12-13(b)(5) on March 26, 2020 the Township of Ocean offers for sale the following property to contiguous property owners under the following terms and conditions:

- a) Property offered for Sale: Block 25.05, Lot 5 (Chatham Avenue) of the Township of Ocean Tax Map

MEETING MINUTES

February 27, 2020

- b) Minimum Price: \$34,400.00
- c) Deed Restriction: The Property shall be precluded from further sale as a separate lot by the contiguous owner purchasing said property pursuant to this ordinance. Nothing contained herein shall prohibit the development of the Property for accessory uses to the principal, contiguous lot with which it shall be merged; or shall preclude its development as a fully buildable lot providing it is included with other lands from the principal contiguous lot if a subdivision is approved by the Township of Ocean Planning Board or Board of Adjustment.
- d) The sale is made subject to all restrictions, covenants, restrictions and conditions of record, with said property being sold in an "as is" condition and is being sold subject to such other facts that an accurate, certified survey would reveal. The sale is further subject to the purchaser obtaining subdivision and site plan approval to consolidate the Property for use with the contiguous property.
- e) Any contiguous property owner desiring to make an offer for the purchase of the property being offered for sale herein shall, within twenty (20) days following advertisement of this notice or a receipt of a mailed copy of this note, make an offer in writing by certified mail addressed to the Township Council c/o Township Clerk, Township of Ocean, 399 Monmouth Road, Oakhurst, New Jersey 07755 at no less than the minimum price set forth hereinabove. All bids must be received **no later than 3:00pm on Friday, April 17, 2020, all bids must be marked "Sealed Bid Enclosed"**.
- f) The Township Council of the Township of Ocean reserves the right to reject any and all offers, and shall accept or reject any offer within thirty (30) days of the advertisement of this public notice. If the Township Council fails to accept or reject any offer within the aforesaid time period, all offers will be deemed rejected. Where there is more than one owner with real property contiguous to the property being offered for sale, the subject property will be sold to the highest bidder or offer from among all such owners submitting an offer as provided for herein. All offers shall be accompanied by a certified or cashier's check in the amount of ten percent (10%) of the offer made, payable to the Township of Ocean; the balance shall be paid at closing of title.
- g) A meets and bounds description must be provided by the successful bidder within twenty (20) days after the acceptance of the offer by the Township Council.
- h) The closing of title shall be by a bargain and sale deed without covenants as to grantor. Closing shall take place no later than ninety (90) days after the acceptance of the offer by the Township Council. The Township of Ocean makes no representation as to the condition or marketability of title as to the subject property.
- i) In addition to the purchase or offer price, it shall be the responsibility of the successful bidder to pay at closing the advertisement and mailing costs in connection with this sale and the Township Attorney's fee for the preparation of the deed in connection with this sale. If the successful bidder or offer shall fail to close title through no fault of the Township, the successful bidder or offerer shall forfeit the deposit made for the sale, which shall be retained by the township as liquidated damages, except in the event the successful bidder or offerer is not successful in obtaining subdivision and site plan approval to develop the Property with the contiguous property, the Township shall return the deposit to the successful bidder and neither party shall have any further obligation to the other with regard to the Property.
- j) The Township Clerk shall file with the Director, Division of Local Government Services in the Department of Community Affairs, a sworn affidavit verifying publication of advertisement as required by this ordinance.

SECTION II

All ordinances and parts of ordinances in consistent herewith are hereby repealed.

SECTION III

Since this ordinance is not legislative in nature, it need not be codified in the “Revised General Ordinances of the Township of Ocean.”

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve	X				
Motion to Second			X		
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

SCHEDULE A

Will be provided at a later date.

SCHEDULE B

Property Value Calculation

Portion of Block 25.05, Lot 5

Chatham Avenue

Square Feet	4,000
Price per Square Foot	\$8.60
Minimum Opening Bid	\$34,400.00

Ord 2336
An Ordinance authorizing the Private Sale of a portion of Non-Conforming Real Property known as Block 140.17, Lot 2 to a the contiguous property owner

WHEREAS, NJSA 40A:12-13(B)(5) authorizes the sale of municipally owned property which is less than the minimum size required for development under the Municipal Zoning Ordinance; and which is without any capital improvement thereon, to the owners of contiguous real property; and

WHEREAS, the Township Council has found and determined that a portion of the real property designated as **Block 140.17, Lot 2** aforesaid (hereinafter the “Property”) will not be needed for public use and may be offered for sale to the contiguous owners pursuant to the cited statutes; and

WHEREAS, the Property is more fully described by the legal description attached as Schedule A; and

WHEREAS, the Tax Assessor of the Township of Ocean has recommended the sale of the subject lot with a **minimum bid price of \$7,500.00** “Schedule B” attached;

NOW, THEREFORE, BE IT ORDAINED by the Township Council of the Township of Ocean, County of Monmouth, State of New Jersey as follows:

MEETING MINUTES

February 27, 2020

SECTION I

Within five (5) days following final enactment of this ordinance, the Township Clerk shall post on the regular Town Hall bulletin board and advertise in a newspaper circulating the Township, a notice setting forth the following information as to the sale of a portion of **Block 140.17, Lot 2** (Belmont Avenue) of the Township of Ocean Tax Map, whose sale is hereby authorized. A copy of this notice shall be mailed by certified mail by the Township Clerk to all contiguous property owners of the property being offered for sale within the aforesaid five (5) day period.

PUBLIC NOTICE

TOWNSHIP OF OCEAN – MONMOUTH COUNTY

TAKE NOTICE that an ordinance of the Township of Ocean adopted pursuant to NJSA 40A:12-13(b)(5) on March 26, 2020 the Township of Ocean offers for sale the following property to contiguous property owners under the following terms and conditions:

- a) Property offered for Sale: Block 25.05, Lot 5 (Chatham Avenue) of the Township of Ocean Tax Map
- b) Minimum Price: \$7,500.00
- c) Deed Restriction: The Property shall be precluded from further sale as a separate lot by the contiguous owner purchasing said property pursuant to this ordinance. Nothing contained herein shall prohibit the development of the Property for accessory uses to the principal, contiguous lot with which it shall be merged; or shall preclude its development as a fully buildable lot providing it is included with other lands from the principal contiguous lot if a subdivision is approved by the Township of Ocean Planning Board or Board of Adjustment.
- d) The sale is made subject to all restrictions, covenants, restrictions and conditions of record, with said property being sold in an “as is” condition and is being sold subject to such other facts that an accurate, certified survey would reveal. The sale is further subject to the purchaser obtaining subdivision and site plan approval to consolidate the Property for use with the contiguous property.
- e) Any contiguous property owner desiring to make an offer for the purchase of the property being offered for sale herein shall, within twenty (20) days following advertisement of this notice or a receipt of a mailed copy of this note, make an offer in writing by certified mail addressed to the Township Council c/o Township Clerk, Township of Ocean, 399 Monmouth Road, Oakhurst, New Jersey 07755 at no less than the minimum price set forth hereinabove. All bids must be received **no later than 3:00pm on Friday, April 17, 2020, all bids must be marked “Sealed Bid Enclosed – Belmont Avenue”**.
- f) The Township Council of the Township of Ocean reserves the right to reject any and all offers, and shall accept or reject any offer within thirty (30) days of the advertisement of this public notice. If the Township Council fails to accept or reject any offer within the aforesaid time period, all offers will be deemed rejected. Where there is more than one owner with real property contiguous to the property being offered for sale, the subject property will be sold to the highest bidder or offer from among all such owners submitting an offer as provided for herein. All offers shall be accompanied by a certified or cashier’s check in the amount of ten percent (10%) of the offer made, payable to the Township of Ocean; the balance shall be paid at closing of title.
- g) A meets and bounds description must be provided by the successful bidder within twenty (20) days after the acceptance of the offer by the Township Council.
- h) The closing of title shall be by a bargain and sale deed without covenants as to grantor. Closing shall take place no later than ninety (90) days after the acceptance of the offer by the Township Council. The Township of Ocean makes no representation as to the condition or marketability of title as to the subject property.

- i) In addition to the purchase or offer price, it shall be the responsibility of the successful bidder to pay at closing the advertisement and mailing costs in connection with this sale and the Township Attorney’s fee for the preparation of the deed in connection with this sale. If the successful bidder or offer shall fail to close title through no fault of the Township, the successful bidder or offerer shall forfeit the deposit made for the sale, which shall be retained by the township as liquidated damages, except in the event the successful bidder or offerer is not successful in obtaining subdivision and site plan approval to develop the Property with the contiguous property, the Township shall return the deposit to the successful bidder and neither party shall have any further obligation to the other with regard to the Property.
- j) The Township Clerk shall file with the Director, Division of Local Government Services in the Department of Community Affairs, a sworn affidavit verifying publication of advertisement as required by this ordinance.

SECTION II

All ordinances and parts of ordinances in consistent herewith are hereby repealed.

SECTION III

Since this ordinance is not legislative in nature, it need not be codified in the “Revised General Ordinances of the Township of Ocean.”

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve	X				
Motion to Second			X		
Approved	X	X	X	X	X
Opposed					
Not Voting/Recuse					
Absent/Excused					

SCHEDULE A

Will be provided at a later date.

SCHEDULE B

Property Value Calculation

Portion of Block 140.17, Lot 2

Belmont Avenue

Square Feet	2,500
Price per Square Foot	\$3.00
Minimum Opening Bid	\$7,500.00

Public Comments:

Tom Kraeutler discussed the email he sent to the Governing Body expressing his concerns with the zoning as referenced in Ordinance No. 2334A. Mr. Kraeutler discussed his concerns with regards to the property flooding.

Discussion occurred regarding how much of the property in question is actually buildable, as there exists significant amount of wetlands.

Mr. Arbus responded to his concerns as well as the history of how the number of units was determined.

Marybeth Lonergan, the Township’s COAH Planner, stated that should wholesale changes be required, it would need to be brought back before the Governing Body for approval.

Mr. Kraeutler also requested that a real barrier be placed between the property and Pine Street. The ordinance calls for a chain to serve as the barrier which Mr. Kraeutler feels is not appropriate.

Further discussion occurred with regard to other points brought forth by Mr. Kraeutler including the conversion of the basement and attic into living space and who would be occupying these units

Ms. Lonergan explained the Township has appointed a Housing Liaison whose responsibility it would be to market the units and qualify the inhabitants.

David Dorfman was in favor of having this development as he owns property in that same area.

John Huss read a statement concerning the comments made at a previous meeting about changing the name of the Township of Ocean.

Mr. Huss also discussed the proposed development at Deal Road and Route 35

Ed Sullivan spoke about his ongoing housing situation.

Steve Levy asked the Township to repave Dwight Drive.

Seeing there were no additional Public Comments at this time the meeting was adjourned.

Record of Vote	Deputy Mayor Napolitani	Councilman Acerra	Councilwoman Donlon	Councilman Fisher	Mayor Siciliano
Motion To Approve			X		
Motion to Second				X	
Approved	X	X	X	X	
Opposed					
Not Voting/Recuse					
Absent/Excused					X

Respectfully submitted,

Christopher P. Siciliano
Mayor

Vincent Buttiglieri, RMC/MMC
Township Clerk